Appendix II

Certificate of Indira Jaising, Senior Advocate, Supreme Court of India, Certifying Mohammad Afzal's Case Merits Curation by the Supreme Court

IN THE SUPREME COURT OF INDIA IN ITS CRIMINAL ORIGINAL JURISDICTION AND IN ITS JURISDICTION UNDER ARTICLE 32 OF THE CONSTITUTION OF INDIA CURATIVE PETITION NO.——— OF 2006

In the matter of:

M. Afzal Guru

……Petitioner

Versus

State NCT of Delhi & Anr

……Respondent

CERTIFICATE OF MS. INDIRA JAISING, SNR. ADVOCATE

1. This Hon'ble Court vide judgment dated 4.8.2005 in Criminal Appeal No. 381/2004 has found the Petitioner guilty, convicted and sentenced him to life sentence on three counts under Section 121–A, Section 3 (3) POTA and Section 4 (a) r/w Section 4 (i) of the Explosive Substances Act 1908, this life sentence was merged with the death sentence on two counts under Section121 IPC r/w section 120-B IPC read with section 302 IPC. The appeal of the Petitioner was dismissed subject to setting aside convictions under Section 3 (2) of POTA and Section 3 of the Explosive Substances Act.